

22STV10441 22STV10441

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Case Number: 22STV10441 Hearing Date: June 30, 2026 Dept: 414

22STV10441

John R. Villanueva, Jr. v. Volkswagen Group of America

Tuesday,

June 30, 2026

[TENTATIVE] ORDER GRANTING

MOTION FOR PLAINTIFF'S ATTORNEY FEES

I.

BACKGROUND

This

action arose from alleged violations of the Song Beverly Consumer Warranty Act.

Plaintiff moves for an award of attorney's fees in the total amount of

\$58,211.88, consisting of \$43,369.50 in attorneys' fees; a 1.25 multiplier

enhancement on the attorney fees (or \$10,842.38); and an additional \$4,000.00

for Plaintiff's counsel to review Defendant's opposition, prepare the reply;

and attend the hearing on this motion.

Defendant

argues that the motion is untimely made, the requested fees are inflated and

unreasonable, and Plaintiff should be awarded no more than \$5000, which

Defendant has paid. Defendant argues the hourly fee should be fixed at between \$400/\$300.

The

Court has considered the motion, opposition, reply, and all papers submitted in support.

II.

LEGAL STANDARDS

A

party prevailing on a Song-Beverly claim shall be allowed to recover fees, costs, and expenses as part of the judgment. (Civ. Code, § 1794 (d).) The court applies the lodestar method to determine a reasonable fee award, which requires a calculation of the number of hours reasonably spent multiplied by a reasonable hourly rate. The latter is based on the prevailing community rate for similar work. (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140.)

The

court may rely on his or her own experience and is given broad discretion in calculating reasonable attorney's fees. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Ultimately, the trial court "is the best judge of the value of professional services rendered in its court" and its determination will not be disturbed unless it is "clearly wrong." (Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.)

III. DISCUSSION

A. The

Code of Civil Procedure Section 998 offer and acceptance

Plaintiff

accepted the § 998 offer on January 30, 2024. (B. McKinley decl., Ex. A. The salient terms are:

"No later than

45 days after Plaintiff accepts Defendant's Offer to Compromise, Defendant will pay Plaintiff's costs and expenses – including Plaintiff's attorney's fees – incurred in this action in the amount of \$5,000.00; or, at Plaintiff's option, pursuant to Cal. Civil Code §1794(d), Defendant will pay a sum equal to the aggregate amount of costs and expenses – including Plaintiff's attorney's fees based on actual time expended – reasonably incurred by Plaintiff in connection with the commencement and prosecution of this action as determined and ordered by the Court pursuant to a noticed motion filed by

Plaintiff; ..." (Ex. A, ¶ 2.)

"A judgment will
not be entered in this action; rather, Plaintiff's claims against

Defendant shall
be dismissed with prejudice after completion of the terms set forth herein." (Id. ¶ 7.)

Plaintiff
filed a notice of settlement on February 25, 2024. Settlement was conditional
upon completion of the terms of settlement, and a dismissal would be filed April
21, 2024. (NOS 2.25.24). On February 10, 2025, the court dismissed the action
without prejudice.

The
parties' accepted Code of Civil Procedure section 998 offer expressly provided
that Defendant would pay Plaintiff's attorney's fees either in the amount of
\$5,000 or, at Plaintiff's election, in an amount "determined and ordered
by the Court pursuant to a noticed motion filed by Plaintiff." The offer
further provided that "[a] judgment will not be entered in this action;
rather, Plaintiff's claims against Defendant shall be dismissed with prejudice
after completion of the terms set forth herein." Thus, unlike the ordinary
case in which dismissal follows immediately upon settlement, the parties
expressly contemplated a future noticed motion regarding attorney's fees and
conditioned dismissal with prejudice upon completion of all settlement terms.

Defendant
contends Hatlevig
v. General Motors LLC (2026) 118 Cal.App.5th 644
controls. Plaintiff should have filed the motion within 180 days of dismissal.
In Hatlevig, the clerk served notice stating the case would be dismissed
on August 15, 2024, unless good cause why dismissal should not be entered was
shown. As no one showed good cause, the case was dismissed on August 15, 2024.
The Hatlevig court held that August 15, 2024, was the date that started
the clock on Plaintiff's motion for attorney's fees. Plaintiff had 180 days to
serve and file the motion from that date. (Hatlevig
at 650.)

Therefore,
Defendant argues that Plaintiff had 180 days from February 25, 2025, to file

and serve this motion. The eCourt file states that this matter was dismissed on February 25, 2025, but no such minute order appears. The 180th day elapsed (from February 10, 2025) on August 9, 2025 (Saturday). The next business day to file and serve a fee motion was Monday, August 11, 2025. This motion was filed April 23, 2026.

As

Plaintiff argues, this case is distinguishable from *Hatlevig* because the parties' settlement agreement here stated that dismissal with prejudice would be entered after completion of the terms of dismissal. Plaintiff's reply brief cites *Madrigal*

v. *Hyundai Motor America* (2023) 90 Cal.App.5th 385.

In that case the parties entered into a stipulated settlement which provided as follows:

"(1)

Hyundai would pay plaintiffs \$39,000; (2) there would be no surrender of the vehicle because plaintiffs no longer owned it; (3) plaintiffs would release Hyundai and the selling dealership of any claims that arise out of or [relate] to the facts and circumstances described in the complaint or relating to the sale of the vehicle or relating to the service and repair history of the subject vehicle; (4) the settlement would be subject to section 664.6; and (5) plaintiffs could seek fees by motion, to be filed within six months of the date of settlement. Hyundai's counsel added that plaintiffs' counsel wanted to make sure that the payment be made and then ... dismissal with prejudice would only happen after payment of the restitution to the Plaintiffs and the fees which will be [by] motion [for] fees and costs." (*Madrigal* at 392-93.)

The

Madrigal court construed the term "judgment" for purposes of section 998 "to include a dismissal with prejudice, like the one agreed to by the parties in this case.") While *Madrigal* determined a different issue, in reaching that conclusion, the court had to construe what "judgment" meant according to the section 998 offer, and since the case had not been dismissed with prejudice, the court should have considered the plaintiff's fee motion and request for costs. (*Id.* at 397.) Accordingly, this case is more analogous to *Madrigal v. Hyundai Motor America* than to *Hatlevig v. Board of Trustees of California State University*. Under the parties' agreement, a future fee motion was not merely possible; it was expressly contemplated by the settlement itself.

A final dismissal with prejudice has not been entered in this case. The offer that Plaintiff accepted shows the parties' mutual intent that a dismissal with prejudice would not be entered until Plaintiff's entitlement to fees and costs was determined by the court.

B.

Standards for determining a reasonable fee.

The trial court makes an initial determination of the actual time spent and whether under all the circumstances of the case the amount of time spent and the charge being made for that time is reasonable. (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158.)

If the court determines the time spent and the charge made for that time are not reasonable under all the circumstances, then the court "must take this into account and award attorney fees in a lesser amount." (Id. at 1158.)

The prevailing party is entitled to "compensation for all the hours reasonably spent in litigating the action to a successful conclusion. (Ibid., *italics in original*.) 'Reasonably spent' means that time spent 'in the form of inefficient or duplicative efforts is not subject to compensation.'" (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 394 [*italics in original*].)

The court has discretion to apply a reduction in hours for duplicative and/or excessive billing. Proper factors to consider in applying a negative reduction are the lack of complexity, that the matter did not go to trial, that name partners were doing work that could have been done by lower-billing attorneys, and that all the attorneys were doing work that could have been done by paralegals. (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41.)

In setting an reasonable hourly rate, "the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [*citation*], the difficulty or complexity of the litigation to which that skill was applied [*citations*], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (Morris at 41.)

The court can reduce the rates based on excessive time spent on a “not so complex case.” (Morris at 39.) Reasons for reduction could include that the matter did not go to trial, “that the name partners were doing work that could have been done by lower-billing attorneys; and that all the attorneys were doing work that could have been done by paralegals.” (Morris at 41.)

The procedural history remains highly relevant to the reasonableness of the fees requested. On February 10, 2025, Plaintiff’s counsel represented to the Court that the settlement agreement provided for retention of jurisdiction pursuant to Code of Civil Procedure section 664.6. Based upon that representation, the Court dismissed the action without prejudice and ordered Plaintiff to file a written request for dismissal. Plaintiff never complied with that order. Instead, on February 25, 2025, the parties filed a stipulation pursuant to Code of Civil Procedure section 664.6 requesting that the Court retain jurisdiction to enforce the settlement. The stipulation and order are silent regarding dismissal and did not comply with the Court’s directive that Plaintiff file a written request for dismissal.

Moreover, settlement funds had been paid by May 2024, yet Plaintiff did not file the present motion until April 23, 2026—nearly two years after payment of the settlement proceeds and approximately fourteen months after the Court dismissed the action without prejudice. Plaintiff offers no satisfactory explanation for this extraordinary delay. Although the Court will reach the merits of the motion under the circumstances presented by the parties’ settlement agreement, Plaintiff’s significant delay and failure to comply with the Court’s prior orders are properly considered in determining the reasonableness of the fees sought.

C. Plaintiff
has shown the hourly rates are reasonable.

Eleven
attorneys worked on this case for a total of 114.1 hours.

BILLER

EXPERIENCE

RATE PER HOUR

KJ

Managing
partner

\$550

Donald Mahnke

Senior
associate, 5 years

450

Stephanie
Hovhannisyan

Associate, 3
years

395

Gregory
Sogoyan

Partner

500

Luis Serrano

Senior
Associate, 3 years

395

Joshua

Kohanoff

Attorney, 4
years

425

Xavier Hozven

Associate

400

Sara Pfeffer

Associate, 6 years

350

Roxanna Talaie

Associate, 8
years

400

Stephanie
Argent

Associate, 2
years

395

Elana Jason

Associate, 2
years

350

\$4,610.00

The blended hourly rate is \$419
(4610/11) which the court finds reasonable.

D. The
time billed is not reasonable.

The
case was filed on March 25, 2022, Plaintiff filed notice of settlement on
January 22, 2024. The case lingered from that time wherein hearings on orders
to cause were scheduled and held until February 6, 2025, when the parties filed
a stipulation and order for settlement pursuant to Civil Procedure § 664.6.

Defendant
takes issue with the time spent on discovery, a total of 25.4 hours preparing
and analyzing discovery that in defense counsel's and experience are routine. The
record reflects that this was a routine Song-Beverly action resolved before
depositions, expert discovery, dispositive motions, or trial. The written
discovery propounded and responded to in this matter consisted primarily of
standard, form discovery commonly utilized in Song-Beverly litigation. The
Court finds the time expended excessive and duplicative for a matter of this
nature and reduces the discovery-related time by 15.0 hours.

After
Plaintiff accepted the section 998 offer, Plaintiff billed 18.7 hours for
repeatedly preparing for hearings on Orders to Show Cause for over one year. The
repeated OSC proceedings were necessitated in substantial part by Plaintiff's
own delay in concluding the case and Plaintiff's failure to comply with the
Court's February 10, 2025, order directing Plaintiff to file a written request
for dismissal. The Court will not require Defendant to bear the cost of
attorney time attributable to Plaintiff's lack of diligence in completing the
settlement process and bringing a timely fee application. The OSC re: Dismissal
proceedings were routine, non-complex calendar matters requiring minimal
preparation. The Court finds that no more than two total hours of attorney time
were reasonably necessary for all work associated with the OSC re: Dismissal proceedings.
Accordingly, the Court reduces the 18.7 hours billed for post-settlement and
OSC-related work by 16.7 hours.

After deducting 31.7 hours billed,
the court finds that 82.4 hours billed (including the fee motion) is reasonable
for a total fee award of \$34,525.60 at the blended rate (82.4 x 419.)

C. The case does not warrant a multiplier.

The
court may consider the following factors to augment or diminish the lodestar: (1)
the novelty and difficulty of the questions involved, (2) the skill displayed
in presenting them, (3) the extent to which the nature of the litigation
precluded other employment by the attorneys, (4) the contingent nature of the
fee award. (Id. [“the court determines, retrospectively, whether the
litigation involved a contingent risk or required extraordinary legal skill
justifying augmentation of the unadorned lodestar in order to approximate the
fair market rate for such services.”].)

Plaintiffs
have not shown that case was so complex to warrant a multiplier.

IV. CONCLUSION

Accordingly,
Plaintiff's motion is GRANTED. The Court awards attorney's fees of \$34,525.60.